

ETABLIX

INTEGRATED SITE SERVICES

A trading name of JNN GLOBAL LTD · Company number 15405437

EMPLOYERS' LIABILITY INSURANCE STATEMENT OF POSITION

why no certificate is attached, and the date that changes

Document	Statement of position — employers' liability insurance
Revision	1
Date	[date]
Company	JNN GLOBAL LTD, trading as ETABLIX · Company No. 15405437
Given by	[name], Managing Director
Statute	Employers' Liability (Compulsory Insurance) Act 1969
Purpose	Provided in answer to a request for documentary evidence of employers' liability insurance

This document is issued in draft until every bracketed field is completed and it is signed and dated. An unsigned, undated policy is treated at a selection stage as a draft, and a draft evidences nothing.

1. The position

ETABLIX does not hold employers' liability insurance, and is not required to. No certificate is attached because none exists. This statement is provided in its place so that the position is stated rather than left as an unexplained gap in a submission.

The Employers' Liability (Compulsory Insurance) Act 1969 requires an employer carrying on business in Great Britain to insure against liability for bodily injury or disease sustained by its employees in the course of their employment. The requirement does not apply to a company whose only employee is a director who owns fifty per cent or more of the issued share capital.

1.1 The facts that engage the exemption

Employees	One. [Name], Managing Director. There are no other employees, no agency workers and no labour-only subcontractors engaged as employees.
Shareholding	[Name] holds []% of the issued share capital of JNN GLOBAL LTD — not less than fifty per cent.
Conclusion	The company falls within the exemption and no policy is required by the 1969 Act.

Confirm both rows against the company's own register of members and the confirmation statement before signing. The exemption turns on the shareholding, and a statement that gets its own shareholding wrong is worse than no statement.

2. What is in place instead

The absence of a compulsory policy does not leave the company uninsured, and the other covers are the ones that actually respond to the risks a client carries.

Cover	Position
Public liability	[Insurer, policy number, limit of indemnity, period of insurance. Certificate attached separately at the public liability question.]
Professional indemnity	[Insurer, policy number, limit of indemnity, basis — each and every claim or in the aggregate — and period of insurance. Certificate attached separately at the professional indemnity question.]
Employers' liability	None. Exempt, for the reason at section 1.

Public liability and professional indemnity are the covers that respond to injury to a third party and to a defective specification respectively. For a consultancy that writes requirements rather than performing work on site, professional indemnity is the one a client should ask about hardest.

3. Site attendance

ETABLIX attends client sites to observe, measure and record. It performs no physical work, operates no plant, erects nothing and directs no operative. Attendance is as a visitor under the control of the principal contractor,

subject to that contractor's site rules, induction and permit arrangements.

Nothing in an ETABLIX appointment constitutes acceptance of a duty holder role under the Construction (Design and Management) Regulations 2015. Where a client wishes ETABLIX to hold such a role, it is appointed expressly and in writing, and the insurance position is reviewed before that appointment takes effect and not after.

4. When this ceases to apply

The exemption ends on the first employment, and cover will be in force before that person starts work rather than in the same week. It is stated that way because the two are not the same thing, and the gap between them is exactly where an uninsured employment happens.

- The trigger is the engagement of any employee other than the director, including a part-time or fixed-term one.
- It is also triggered if the director's shareholding falls below fifty per cent while the company has employees.
- On either event a policy is bound first, the certificate is displayed or made available as the Act requires, and any authority holding this statement is notified that it is superseded.

Where a first employment is already planned, give the expected date here. A buyer reading a specific date reads a company that has thought about this. A buyer reading 'in due course' reads one that has not.

5. Confirmation

The company confirms that the statements above are true at the date of this document, that it will notify any authority holding it if the position changes, and that it will produce evidence of employers' liability insurance within five working days of that cover being bound.

Signed	[signature]
Name	[name]
Title	Managing Director, for and on behalf of JNN GLOBAL LTD trading as ETABLIX
Date	[date]

Approval

This policy is a live document. It is reviewed on the dates recorded on the cover and reissued whenever the work, the people or the law changes.

Signed

Name [name]

Position Managing Director

Date